

Court No. - 3

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Sri Shireesh Dwivedi holding brief of Sri Chandan Agarwal appearing for respondents no. 2 & 3 prays for and is allowed a week's time to seek instruction in the matter.

Put up as fresh on 9 May, 2017.

Order Date :- 26.4.2017

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Court No. - 3

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Case called out. Shri Chandan Agarwal appearing for the respondents is not present.

Put up on 11.05.2017 as fresh.

A notice shall be served by learned counsel for the petitioner on Shri Chandan Agarwal that the matter shall be taken up as fresh on 11th May, 2017.

Order Date :- 10.5.2017

VKS

Court No. - 3

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

It is contended that in view of the provisions of Electricity Supply Code, 2005 as well as various circulars issued by the Government in case of a company, the assessment bill cannot be raised on the basis of difference in consumer meter and double pole meter. Since the impugned assessment bill has been issued on the basis of difference between consumer meter and double pole meter, the same is patently illegal. It is further submitted that the provisions contained in Section 5.6 of the Electricity Supply Code, 2005 provide that bills of previous three months prior to the month in which the dispute has arisen is liable to be charged. However, the respondents have wrongly calculated the bill for the last nine months.

In reply, Shri Chandan Agarwal, referring to Electricity Supply Code (Fifth Amendment), 2005 which came into effect on 24.7.2014, points out that in view of the amendment in clause 5.7, the period between the date of last reading and the date of replacement of the defective meter, where double metering system is available and is working in healthy condition, the reading of double pole meter/ substation meter/audit meter shall be considered for billing purposes on per day basis in that particular month. It is pertinent to point out that the amended clause also

speaks that difference in consumer meter and double pole meter for previous three months can be taken into account.

Prima facie, the issue raised before us requires scrutiny.

Shri Chandan Agarwal, appearing for the respondent, may file a counter affidavit within six weeks. Rejoinder affidavit, if any, be filed within two weeks thereafter.

List immediately after expiry of the aforesaid period.

Considering the facts and circumstances, recovery against the petitioner in pursuance to the assessment bill (Annexure 11 to the writ petition) as well as disconnection of the supply of electrical energy to the petitioner's company in pursuance of the impugned order dated 10.3.2017 shall remain stayed subject to condition that petitioner deposits the amount, to be calculated by the respondent for the last three months from the date when the dispute arose, i.e. 9.12.2016, within ten days from the date demand is raised. He shall also go on paying bill regularly as and when the same is generated and supplied to him.

Order Date :- 24.5.2017

Anand Sri./-

Court No. - 40

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Sri H.P. Dubey, learned counsel for the petitioner submits that there are certain facts which he want to bring on record through supplementary affidavit.

The case is passed over for the day as requested.

Order Date :- 17.4.2018

A. Verma

Court No. - 40

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Sri Hanuman Prasad Dubey, learned counsel for the petitioner has sent his illness slip today.

List in the next cause list.

Order Date :- 24.4.2018

A. Verma

Court No. - 40

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Supplementary affidavit has been served on the learned counsel for the respondents today, the same has been filed before the Court.

Learned counsel for the respondents may file a response both to the writ petition and the supplementary affidavit by the next date fixed.

List in the next cause list.

Order Date :- 1.5.2018

M. ARIF

Court No. - 40

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Sri Chandan Agarwal, learned counsel for the respondents states that the counter affidavit is under preparation and shall be served on the learned counsel for the petitioner within a week.

List in the next cause list by which the time, the reply may also be filed if the counter affidavit be served.

Order Date :- 8.5.2018

M. ARIF

Court No. - 40

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Sri Chandan Agarwal, learned counsel for the respondent has sent his illness slip today.

List in the next cause list.

Order Date :- 15.5.2018

Monika

Court No. - 40

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Learned counsel for the petitioner Sri Hanuman Prasad Dube submits that a counter affidavit has been served on him by the learned counsel for the petitioner on 16th May, 2018.

He prays for two weeks' time to file a rejoinder affidavit. Time prayed for is granted.

List thereafter.

Order Date :- 22.5.2018

M. ARIF

Court No. - 38

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Abhinava Upadhyay,J.

Hon'ble Shashi Kant,J.

On the request of Sri H.P.Dube, learned counsel appearing for the petitioner, list the petition in the next cause list to enable him to file rejoinder affidavit.

Order Date :- 3.7.2018

SKM

(Shashi Kant,J.) (Abhinava Upadhyay,J.)

Court No. - 38

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Abhinava Upadhyay,J.

Hon'ble Shashi Kant,J.

Rejoinder affidavit filed today is taken on record.

As prayed by the learned counsel for the respondent, list in the next cause list.

Order Date :- 24.7.2018

A. Pt. Singh

(Shashi Kant, J.) (Abhinava Upadhyay,J.)

Court No. - 40

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Manoj Misra, J.

Hon'ble Dinesh Pathak, J.

Sri H.P. Dube, learned counsel for the petitioner, has informed the Court that earlier Sri Chandan Agarwal was appearing for the respondent nos. 2 and 3. He served counter-affidavit to which rejoinder-affidavit has already been filed but, now, Sri Pranjal Mehrotra is representing the respondents 2 and 3 whose name is not shown. He, accordingly, prays that this matter may be listed after two weeks showing the name of Sri Pranjal Mehrotra from the respondents side.

In view of the above, let this matter be listed again on 29th July, 2021 showing the name of Sri Pranjal Mehrotra also from the respondents side.

Order Date :- 9.7.2021

Sunil Kr Tiwari

Court No. - 3

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Put up this case in the additional cause list on 12.08.2021, showing the name of Sri Shravan Kumar Tripathi, as counsel for the respondent.

Order Date :- 5.8.2021

Abhilash

Court No. - 21

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Case is passed over for the day on the illness slip of learned counsel for the petitioner.

List in the next cause list.

Order Date :- 9.11.2021

Saurabh

Court No. - 21

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube,Pooja Talwar

Counsel for Respondent :- C.S.C.,Chandan Agarwal,Pranjal Mehrotra,Shrawan Kumar Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

As prayed by learned counsel for the petitioner, the case is adjourned to 26.04.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 7.4.2023

Shivangi

Court No. - 21

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube, Pooja Talwar

Counsel for Respondent :- C.S.C., Chandan Agarwal, Pranjal Mehrotra, Shrawan Kumar Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Counsel for the petitioner states that an amendment application was filed in the registry on 22.12.2023, which is not on record.
2. Office shall trace out the same and place it on record.
3. List in July, 2024.

Order Date :- 14.5.2024

CS/-

(Kshitij Shailendra, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube, Pooja Talwar

Counsel for Respondent :- C.S.C., Chandan Agarwal, Pranjal Mehrotra, Shrawan Kumar Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

Ref: Civil Misc. Amendment Application No. 5 of 2023.

1. Heard.

2. The amendment application is allowed.

3. Counsel for the petitioner is permitted to incorporate the amendment in the body of the writ petition and to file a copy of amended writ petition after supplying its copy to the other side, within two weeks.

4. As prayed by learned counsel appearing for the Electricity-Department, he is granted three weeks' time to file counter affidavit to the amended pleadings.

5. List this case on 03.09.2024.

Order Date :- 29.7.2024

Nitika Sri.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Court No. - 39

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube,Pooja Talwar

Counsel for Respondent :- C.S.C.,Chandan Agarwal,Pranjal Mehrotra,Shrawan Kumar Tripathi

Hon'ble Siddhartha Varma,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. The case is passed over on the illness slip of Sri Pranjal Mehrotra, learned counsel for the respondents.

2. List on 11.02.2025.

Order Date :- 22.1.2025

Shahroz

(Dr. Y.K. Srivastava,J.) (Siddhartha Varma,J.)

Court No. - 3

Case :- WRIT - C No. - 17548 of 2017

Petitioner :- Gee Cee Cycle Balls Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube,Pooja Talwar

Counsel for Respondent :- C.S.C.,Chandan Agarwal,Pranjal Mehrotra,Shrawan Kumar Tripathi

Hon'ble Shekhar B. Saraf,J.

Hon'ble Praveen Kumar Giri,J.

1. The present matter has been appearing in the Warning List under the heading "Oldest Pending Cases in this High Court for Priority Hearing".
2. None appears on behalf of the petitioner(s) even in the revised call.
3. Learned Standing Counsel appears on behalf of the State respondents.
4. Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record.
5. The writ petition is disposed of.
6. In the event, the petitioner(s) is/are of the view that the cause of action still survives, liberty is granted to the petitioner(s) to file an application for recall/variation/modification of this order in accordance with law.

Order Date :- 5.8.2025

K.K. Maurya

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 17548 of 2017

Gee Cee Cycle Balls Pvt. Ltd.

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Hanuman Prasad Dube, Pooja Talwar
Counsel for Respondent(s)	:	C.S.C., Chandan Agarwal, Pranjal Mehrotra, Shrawan Kumar Tripathi

Court No. - 5

HON'BLE PRAKASH PADIA, J.

HON'BLE VIVEK SARAN, J.

Re:- Civil Misc. Delay Condonation Application No. 09 of 2026

1. Cause shown in the affidavit filed in support of delay condonation application is sufficient, therefore, the delay is condoned.
2. Delay condonation application is **allowed**.

Re:- Civil Misc. Restoration Application No. 10 of 2026.

1. Heard learned counsel for the petitioner on restoration application.
2. Cause shown in the affidavit filed in support of restoration application for non-appearance is sufficient.
3. Learned counsel for the petitioner states that writ petition still survives, therefore, the order dated 05.08.2025 may be recalled and writ petition may also be restored to its original number.
4. Accordingly the recall/restoration application is **allowed** and the order dated 05.08.2025 is recalled. The writ petition is restored to its original number.

(Vivek Saran,J.) (Prakash Padia,J.)

August 17, 2026/T.S.

